

**BEFORE THE FEDERAL MARITIME COMMISSION
WASHINGTON, D.C.**

WAY2GO CARGO CORP.,

DOCKET NO.: 25-14

Complainant,

v.

OAK WAY CARGO, LLC and
Powel Management & Consulting, Inc.

Respondent.

_____ /

**RESPONDENTS' OPPOSITION TO MOTION TO COMPEL
- AND -
CROSS-MOTION FOR PROTECTIVE ORDER**

Respondent Oak Way Cargo, LLC ("Oak Way Cargo"), files this Opposition to Complainant Way2Go Cargo Corp.'s ("Way2Go") Motion to Compel Deposition of Respondent's Corporate Representative and Cross-Motion for Protective Order, and in support thereof, states as follows:

1. The Court should deny Complainant's Motion to Compel because it is premature and procedurally improper. Way2Go filed its Motion to Compel Deposition of Respondent's Corporate Representative on January 27, 2026, before it had even noticed the deposition of Oak Way's corporate representative.

2. Indeed, at the time the Motion to Compel was filed, no deposition notice had been served, no date had been selected, and the parties were working on limiting the Rule 30(b)(6) areas of examination. As such, there is nothing for the Commission to compel.

3. The proper order of things would have been for Complainant to serve a notice of taking deposition, meet and confer on the areas of examination (as required by Fed. R. Civ. P.



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30(b)(6)), and if the parties are unable to reach an agreement, Respondent could file a motion for protective order. Complainant did none of that and instead rushed to the Commission.

4. In any event, after further communications between counsel, Respondent has noticed the deposition (after filing its motion), and counsel have been able to meet and confer regarding the areas of examination. Respondent now moves for a protective order, as permitted by 46 C.F.R. § 502.141(j).

5. A Protective Order is warranted to prevent the harassing, excessive, and improper examination of Oak Way's corporate representative. Way2Go seeks to examine Oak Way's corporate representative on **fifty separate areas of examination**. *See* Motion to Compel at Exhibit B.¹ On its face, this scope is excessive and far exceeds what is proportional to the single claim asserted in this action.

6. Many of the proposed areas of examination seek patently irrelevant information and which go well beyond the one issue before this Court, which is Oak Way's purported use of Way2Go's credentials. For example, areas of examination 3-12, 15, 22, 16, 17, 19 ask about Oak Ways' operations generally, but make not effort to time them to the purported use of Way2Go's license.

7. Similarly, many of the requests are **both broad and ask for highly confidential information**, such as area of examination 20, which designates "all bank accounts used or controlled by Oak Way Cargo LLC."

¹ In the interest of full disclosures, counsel for Respondent and Complainant conferred about the areas of examination on February 2, 2026. Respondent's counsel has agreed to amend 13 of the areas of the examination—but as of the time of this filing, has not yet circulated the amended areas of examination.

8. Further, many of the requests ask for detailed information that no corporate representative could be expected to memorize, such as the “full name and address of all customers, brokers, suppliers, agents, and common carriers involved in shipments that...” *See e.g.*, 34-38.

9. And finally, a Protective Order is further warranted under 46 C.F.R. § 502.143(a)(2), which requires a party to obtain leave of the Presiding Officer before taking the deposition of a witness who has already been deposed in the case.

10. Although Oak Way’s corporate representative has not been formally deposed in this proceeding, he has already spent two days testifying under oath during the evidentiary hearing on Way2Go’s motion for preliminary injunction in the parallel district court action initiated by Way2Go pursuant to 46 U.S.C. § 41306(a).

11. During that evidentiary hearing, Way2Go had a full and fair opportunity to examine Oak Way’s corporate representative and corporate leadership on the same issues it now seeks to revisit—namely, Oak Way’s business operations, alleged use of Way2Go’s credentials, and purported Shipping Act violations. As an example, attached as **Exhibit A** is the testimony of Raphael Alves, which demonstrates that many of the areas of examination have already been addressed at the hearing. *See Exhibit A* at page 19 asking about authorization from Way2Go Cargo Corp. and Way2Go Cargo LTDA, which is covered in areas of examination 46.²

12. Way2Go does not offer any meaningful justification for subjecting Oak Way’s corporate representative to duplicative testimony on the same matters. This is especially true when

² Notably, one of the areas of examination is “Steps taking by Oak Way Cargo, LLC to comply with the Temporary Restraining Order entered by the US District Court for the Southern District of Florida.” It’s disingenuous to now claim that that the proceedings are distinct and that Claimant should have a second opportunity to cross examine Respondent.



one considers that the administrative proceeding is designed to be an expedited and streamlined proceeding.

WHEREFORE, Respondent OAK WAY CARGO, LLC, by and through undersigned counsel, respectfully requests that this Commission enter an Order denying Complainant's Motion to Compel, entering a Protective Order to preclude the deposition of Respondent's corporate representative, and granting such other and further relief as the Commission deems just and proper.

Dated: February 2, 2026.

CERTIFICATE OF CONFERRAL

Counsel for Respondent hereby certifies that it has conferred with counsel for Complainant regarding the relief sought in this Motion. Complainant opposes the relief requested herein.

Respectfully submitted,

BARAKAT + BOSSA, PLLC
Attorney for Respondent
201 Alhambra Circle, Suite 1060
Coral Gables, Florida 33134
Tel (305) 444-3114

By: /s/ Schneur Zalman Kass
SCHNEUR ZALMAN KASS
Florida Bar No. 121865
zkass@b2b.legal
service@b2b.legal
ngomez@b2b.legal

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing was filed via e mail upon the Office of the Secretary at secretary@fmc.gov and served upon all counsel of record for WAY2GO CARGO CORP. at sarah@epgdlaw.com and jennifer@epgdlaw.com on this 2nd day of February, 2026.



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+ BOSSA

By: /s/ Schneur Zalman Kass
SCHNEUR ZALMAN KASS



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